Tentative Rulings for July 29, 2026
Department 3

To request oral argument, you must notify Judicial Secretary Crystal Marias at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 3 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 692 7358

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2304358	ZIGI USA, LLC vs CAPITAL LOGISTICS & WAREHOUSING WEST, INC	MOTION TO COMPEL

Tentative Ruling:

Plaintiff Zigi USA, LLC is a fashion footwear wholesaler that stored its overstock footwear inventory at a warehouse located at 22000 Opportunity Way, Riverside, California, beginning in mid-2022. The warehouse is owned by defendant/cross-complainant 22000 Opportunity Way, LP, a Delaware limited partnership. Under a February 28, 2019 industrial lease, 22000 Opportunity Way leased the building to defendant Capital Logistics & Warehousing Group, Inc. for warehousing and distribution use, and an entity related to Capital Logistics & Warehousing, defendant Capital Logistics Services West, Inc., operated at the premises.

On September 12, 2022, a five-alarm fire started outside the warehouse. Zigi's inventory inside the building allegedly suffered water-damage when the fire department extinguished the fire. Zigi brought this action against the Capital defendants and 22000 Opportunity Way, alleging causes of action for negligence and premises liability.

22000 Opportunity Way filed a cross-complaint against the Capital entities, alleging various causes of action for breach of contract and indemnity.[1] Capital[2] noticed the deposition of 22000 Opportunity Way's person most knowledgeable for April 16, 2025. (Stanley declaration, Exhibit "1".) 22000 Opportunity Way failed to appear, and on August 14, 2025 Capital again noticed the deposition of 22000 Opportunity Way, this time for September 12, 2025 (Exhibit "2"), only for 22000 Opportunity Way to again fail to appear. Zigi USA was served with both notices of the deposition. Then on January 13, 2026 Capital again noticed the deposition, this time for January 29, 2026. (Exhibit "3".) Again the deposition did not take place, nor does the record show that 22000 Opportunity Way served any objections or otherwise informed the other parties that they would not be appearing at the depositions.

Zigi then on January 30, 2026 served a notice of the taking of the deposition of the PMK for 22000 Opportunity Way for February 11, 2026. (Exhibit "4".) No witness was produced, but counsel for 22000 Opportunity Way was present. (Exhibit "5".) At the scheduled deposition, counsel for Zigi stated: "Counsel for the witness has informed us that the witness is not available today and that they are working to find a date in the next week deposition go forward." (*Id.*) On March 31, 2026, Zigi served a new notice of

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[1] There is no direct contractual relationship between Zigi and 22000 Opportunity Way—Zigi leased to Capital, and then Capital entered into a warehousing agreement to store its stock at the warehouse.

[2] The parties do not always clearly differentiate between the Capital entities (nor is the distinction relevant to this motion), but the notices of deposition appear to have been served by Capital Logistics Services West, not Capital Logistics & Warehousing Group.

the same deposition,[3] with a deposition date of May 8, 2026. (Exhibit “6”.) The day before the deposition the attorneys exchanged emails and agreed to reschedule it. (Exhibit “9”.) Then on May 27 Zigi again noticed the same deposition, this time for June 10. (Exhibit “7”.) On June 8 counsel for 22000 Opportunity Way sent a letter to opposing counsel stating that “[d]ue to unforeseen circumstances that just arose and are beyond our control, we will be unable to produce the intended witness from the Sares Regis Group.” (Exhibit “10”.)[4] The same attorneys appeared at the June 10 scheduled deposition, again without a witness present. (Exhibit “8”.) On June 17, counsel for Zigi sent an email to 22000 Opportunity Way’s counsel asking for “a firm date within the next two weeks for your client’s PMQ deposition.” (Exhibit “11”.)

Zigi filed this motion to compel the deposition. According to the declaration of its counsel, no dates have been offered in response to the June 17 email. (Stanley declaration, ¶14.) Zigi seeks an order compelling the deposition and sanctions.

22000 Opportunity Way opposes. The opposition is unsupported by any declaration or exhibits. In the opposition 22000 Opportunity Way claims that the motion is somehow moot and claims to have “found a body to produce for the PMK deposition” and that it has “provided multiple alternative dates for this deposition[].” (Opposition, pp. 2-3.) The opposition then spends some time discussing Capital’s current state of representation, a fact that is obviously irrelevant to 22000 Opportunity Way’s failure to appear at any of the previously noticed depositions. It also opposes the sanctions request. Zigi has filed a reply.

Analysis

In addition to that of an individual person, a party may take the deposition of a public or private corporation, partnership, association, or government agency. (C.C.P. §2025.010.) “If the deponent named is not a natural person, the deposition notice shall describe with reasonable particularity the matters on which examination is requested. In that event, the deponent shall designate and produce at the deposition those of its officers, directors, managing agents, employees, or agents who are most qualified to testify on its behalf as to those matters to the extent of any information known or reasonably available to the deponent.” (C.C.P. §2025.230.) The primary purpose of this procedure is to simplify discovery by eliminating any problems in trying to figure out who in the corporate hierarchy has the information the examiner is seeking… “[i]f the subject matter of the questioning is clearly stated, the burden is on the entity, not the examiner, to produce the right witnesses. And, if the particular officer or employee designated lacks personal knowledge of all the information sought, he or she is supposed to find out from those who do!” (*LAOSD Asbestos Cases* (2023) 87 Cal.App.5th 939, 948–949 [internal quotation marks omitted].)[5]

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[3] This notice somewhat expanded the categories on which a PMK should be produced from what had been in the prior notice.

[4] No explanation has been given as to what the Sares Regis Group is.

[5] The person deposed is referred to as the “person most knowledgeable” (PMK) or “person most qualified” (PMQ). (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) §8:468.)

While counsel are generally expected to conduct and discovery cooperatively, the service of a deposition notice "is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying." (C.C.P. §2025.280(a).) Failure to appear is grounds for a motion to compel the deposition. (C.C.P. §2025.450.) If the deponent has failed to attend the deposition, a meet and confer declaration is not required; it is sufficient for the moving party to provide "a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (C.C.P. §2025.450(b)(2).)

Here 22000 Opportunity Way was properly served with a deposition notice on January 30 and again on May 27 and failed to provide a PMK. No valid objection (C.C.P. §2025.410) was served. The requisite inquiry into the nonappearance was conducted by counsel sending an email "that my office would file a motion to compel 22000's deposition if a firm date for the deposition was not provided." (Stanley declaration, ¶14; Exhibit "11".) Accordingly, Zigi has shown all that is necessary for this motion to be granted.

Sanctions on a motion to compel are appropriate "unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (C.C.P. §2025.450(g)(1).) The opposition fails to show substantial justification. 22000 Opportunity Way first appeared in this action in April of 2024. Trial is currently set for a month from now, August 21. Yet 22000 Opportunity Way's only explanation for the failure to appear for either of the depositions noticed by Zigi (or for any of the depositions noticed by the Capital entities) appears to be some combination of difficulty in identifying a PMK and some confusion around Capital's representation. Neither constitutes "substantial justification" in the sense the term is used in section 2025.450 or other discovery statutes. Finding a PMK for a corporate defendant to testify to the basic issues identified in Zigi's notice (22000 Opportunity Way's ownership and management of the warehouse, the lease agreement with Capital, communications with Capital regarding the warehouse, knowledge of any lease, code, or regulatory violations by Capital, and the fire) should not take two years and until the eve of trial to locate. Capital has been represented throughout this litigation and does not appear to have sought a delay in the deposition.

Moreover, 22000 Opportunity Way's conduct during the time that Zigi was attempting to notice and take the PMK's deposition has been inconsistent with the standards of civility and professionalism required. An attorney should only delay a scheduled deposition when necessary to address scheduling problems and not in bad faith, and should promptly notify all counsel that a previously scheduled deposition will not go forward as scheduled. (Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) §8:496.5 [citing State Bar of California Attorney Guidelines of Civility and Professionalism, §9].) If 22000 Opportunity Way had been having scheduling issues the past six months, its opposition is completely lacking details of the emails, phone calls, and other reasonable attempts to comply with its discovery obligations that one would expect to see from counsel diligently attempting to informally resolve the matter.

Zigi requests $8,664.99 in sanctions: $2,124.99 in costs for court reporters and videographers for the February and June depositions, eight hours of attorney time on the motion, and four hours of attorney time on the reply and attending the hearing, at $545 an hour. The $2,124.99 in costs for the court reporters and videographer is substantiated by the invoices, and the hourly rate and expenses is reasonable given the nature of the litigation and prevailing rates in the area. Twelve hours of attorney time is somewhat excessive, however, for a straightforward motion to compel when the deponent twice failed to appear. The court reduces the number of hours on this motion to eight.

Ruling: Grant the motion to compel and order 22000 Opportunity Way to produce a PMK for deposition within 10 days. Award moving party $6,484.99 in sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402278	PINYON CREST COMMUNITY ASSOCIATION vs LGR DEVELOPMENT	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The request of LGR to continue the motion for post judgment attorney fees and to allow limited discovery is granted. The motion for attorney fees is continued to 10/1/2026 at 8:30 am in Dept. 3. LGR is entitled to discovery regarding the additional attorney fees and costs sought.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406201	LIN vs YOW	MOTION TO TAX COSTS

Tentative Ruling:

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

There is no dispute that Defendant, Yow, were the prevailing parties in this action based on Plaintiff’s voluntary dismissal of the action. A prevailing party is “entitled as a matter of right to recover costs in any action or proceedings.” (CCP § 1032(a)(4).)

Plaintiff challenges specific entries in the MOC, which entries are analyzed below:

Item No. 1 (Filing Fees): Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Defendants' MOC seek $292.35 in filing and motion fees.

Plaintiff challenges all but, one $60.00 motion filing fee. Specifically, Plaintiff challenges $112.35 (21 items at $5.34 each) as apparently unrelated to costs charged by the Court; and $120.00 for two motions to be relieved as counsel, which fees were incurred by Defendants' prior counsel.

Defendants assert that their prior counsel, Park LLP, incurred $254.90 in filing fees. (Dec.Chou ¶ 6, Ex. "A".) They add that Park, LLP was relieved as counsel and Ms. Chou's firm substituted into the case and incurred additional costs of $37.45. (*Id.* ¶ 7, Ex. "B".)

In the Reply, Plaintiff argues that Ms. Chou improperly purports to authenticate Park, LLP's invoices and billing statements prior to Park being relieved as counsel. Notably, there is no declaration from Park, LLP. And, Ms. Chou does not claim to be a custodian of records for Park, LLP. Plaintiff objects to Ms. Chou's declaration based on lack of foundation for personal knowledge and lack of authentication of exhibits. (see Reply, Objs. To Dec.Chou, Nos. 1-3.) These objections are well-taken and should be sustained.

Importantly, CCP § 1033.5(c)(1) provides: "Costs are allowable if incurred, whether or not paid." In *Cell-Crete Corp v. Federal Ins. Co.* (2022) 82 Cal.App.5th 1090, 1095, the Court reversed a trial court order granting a motion to tax costs where the trial court denied costs on the basis that another party "actually incurred and/or paid those costs and expert fees through an indemnification provision." (*Cell-Crete, supra.* citing *Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1221 [the Court of Appeal concluded "the actual payer is irrelevant."]) Under CCP § 1032's "cost-shifting provision, there is 'no requirement that a party claiming costs must have personally incurred the obligations enumerated in the memorandum.'" (*Cell-Crete, supra.* citing *Litt* at 1222.) "What is important, the court held, is that "'Defendants incurred legal liability to pay the costs of the litigation even though some other party may have agreed to reimburse them or to pay all the expenses of the litigation."" (*Cell-Crete, supra.*) Thus, costs were incurred by Defendants.

Problematically, based on Plaintiff's Objections, Defendants have not established Park, LLP's filing fees ($254.90). Thus, this amount should be stricken. The amount of $37.45 is allowed.

Item No. 14 (Electronic Filing/Service Fees): CCP §1033.5(a)(14) allows for recovery of electronic filing or service fees through an electronic filing service provider if the court orders electronic filing or service of documents. This statute does not expressly prohibit recovery of such fees when not ordered by the court. In addition, CCP

§1033.5(a)(1) expressly permits recovery of filing fees, and (c)(4) gives the court discretion to allow cost items not mentioned but that are reasonably necessary to the conduct of the litigation. Defendants' MOC challenges $1,477.29 but, has not itemized or justified these costs, which Plaintiff argues should be reduced to zero.

Defendants assert that the claimed amount of $1,477.29 should be reduced to the corrected amount of $1,302.29. Similar to the filing fees, Ms. Chou declares that $1,127.29 in E-filing fees were incurred during Park, LLP's representation, while the Chou firm incurred $175.00 for a total of $1,302.29. Ms. Chou has provided itemization of these amounts. (Dec.Chou ¶¶ 6-7, Exs. "A" – "B".) Here again, based on Plaintiff's Objections, Defendants have not established Park, LLP's E-filing fees ($1,127.29). Thus, this amount should be stricken. The amount of $175.00 is allowed.

Ruling: The motion is granted in part.

4.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2506714	ELLIS vs BEAUMONT UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

First Amended Complaint (FAC) and Allegations.

This is a discrimination, retaliation and wrongful termination lawsuit initiated by Plaintiff Jennifer Marie Ellis on December 3, 2025 against her former employer Defendant Beaumont Unified School District (or the "District"). District hired Plaintiff on December 26, 2016 as an Accounting Assistant, and she eventually was promoted to Benefits Payroll Technician in 2021. The FAC alleges that beginning in 2017 and continuing thereafter, Purchasing Supervisor Bernie Reveles ("Reveles") engaged in unwelcome and offensive physical touching of Plaintiff and another female coworker Katie Nunez ("Nunez") in Plaintiff's presence. Plaintiff immediately reported Reveles's conduct to her supervisor, Dawn Bray ("Bray"), and the Human Resources ("HR") Director, Jennifer Castillo ("Castillo"), but no investigation was conducted. Reveles's harassing conduct escalated: unwelcome touching of Plaintiff's back, fondling her bra strap, pressing his groin directly toward her face while she was seated, blocking doorways to force Plaintiff to brush past him, sneaking up behind her to startle her, adjusting his genital area in Plaintiff's presence, and unwelcome sexualized comments about Plaintiff's appearance and body.

In October 2022, Plaintiff discovered that Defendant was improperly depositing American Fidelity refunds into the general fund instead of returning the funds to employees and reported this issue to Assistant Superintendent of Business Services, Penni Harbauer ("Harbauer"). Harbauer and Plaintiff's supervisor, Andrea Hernandez ("Hernandez"), directed Plaintiff to accept the situation. Plaintiff disclosed the office's hostile dynamics and retaliation for reporting issues to Superintendent Mays Kakish

("Kakish"), but thereafter, Hernandez directed Plaintiff not to speak directly with Kakish regarding workplace issues.

In January 2023, Plaintiff went on medical leave due to work related stress and the hostile work environment. Upon her return, Plaintiff experienced inappropriate comments about her appearance from Kakish, and hostile aggressive behavior from Carmen Ordonez ("Ordonez"), the Director of Fiscal Services. Plaintiff reported both incidents to HR Director Domenica Bernauer ("Bernauer"), but the hostile work environment worsened. In February 28, 2024, Plaintiff reported all of the hostile and inappropriate conduct she witnessed to Kakish and School Board President Susie Lara ("Lara"). Lara stated, "You are a whistleblower, and we will be conducting an immediate investigation. You will be treated fairly and equally, and we will do everything to ensure there is no retaliation." However, Plaintiff experienced retaliation.

On March 4, 2024, Plaintiff was placed on administrative leave. Thereafter, Plaintiff went on medical leave and was diagnosed with Post-Traumatic Stress Disorder ("PTSD") that was clinically resistant to treatment. Plaintiff received a letter from Bernauer stating Plaintiff's paid leave would be exhausted in two weeks and that if Plaintiff did not return to work, she would be placed on a 39-month medical reemployment list. Plaintiff was not provided with any alternative options or resources, effectively terminating her employment.

The operative FAC, filed April 30, 2026, asserts 10 causes of action:

(1) Discrimination in Violation of the FEHA
(2) Hostile Work Environment in Violation of the FEHA
(3) Retaliation in Violation of the FEHA
(4) Failure to Prevent Discrimination, Harassment, or Retaliation in Violation of FEHA
(5) Failure to Provide Reasonable Accommodation in Violation of FEHA
(6) Failure to Engage in the Interactive Process in Violation of FEHA
(7) Whistleblower Retaliation (Labor Code § 1102.5)
(8) CFRA Leave Retaliation
(9) Interference with CFRA Leave
(10) Intentional Infliction of Emotional Distress (IIED)

Demurrer.

Defendant now demurs to all causes of action for failing to state facts sufficient and are uncertain. It argues the claims are time-barred.

In opposition, Plaintiff maintains the FAC alleges sufficient facts to state all claims against District, and that it is not time-barred for IIED against Tosha. Alternatively, Plaintiff requests leave to amend.

Defendant generally repeats its arguments in reply.

Analysis

I. Meet and Confer

Before filing a demurrer, the moving party **shall** meet and confer, **at least 5 days before a responsive pleading is** due, in person, via telephone, or video conference, with the party who filed the pleading for purposes of seeing if a resolution can be had to the objections raised in the demurrer motion. (Code Civ. Proc., §§410.41, subd. (a), 435, subd. (a).) The moving party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (*Id.* § 430.41, subd. (a)(3).)

Here, Plaintiff failed to respond to all of the District's efforts. (Levin Supp. Decl., ¶¶7-10.)

II. Standard

Demurrers for failure to state a cause of action are commonly referred to as "general" demurrers. (*McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.) All other grounds for demurrers are referred to as "special demurrers." (*Collins v. Rocha* (1972) 7 Cal.3d 232, 239.)

A demurrer may be based on the grounds that a complaint fails to state a cause of action and/or misjoinder of parties. (Code Civ. Proc., §§ 430.10(d), (e).) A complaint fails to state a cause of action if it shows on its face, or it appears from judicially noticed matter, that the action is barred by an affirmative defense or if it fails to state facts essential to establish each element of each cause of action. (*Halvorsen v. Aramark Unif. Servs.* (1998) 65 Cal.App.4th 1383, 1391; *Rakestraw v. Cal. Physicians' Servs.* (2000) 81 Cal.App.4th 39, 43; *Ankeny v. Lockheed Missiles & Space Co.* (1979) 88 Cal.App.3d 531, 537.) In evaluating a demurrer, the court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions, or conclusions of fact or law. (*Dear v. Yellow Cab Co.* (1967) 67 Cal.2d 695. Further, the complaint allegations must be supported by "ultimate facts," not legal conclusions. (*Burke v. Sup. Ct.* (1969) 71 Cal.2d 276.)

III. District's Request for Judicial Notice ("RJN")

District requests judicial notice of five documents: (1) Plaintiff's Civil Rights Department Complaints; filing administrative complaint with the California Civil Rights Department ("CCRD"), formerly Department of Fair Employment and Housing ("DFEH"); (2) The Civil Rights Department claim return; (3) Claim letter on May 21, 2025; (4) Rejection letters dated June 2, 2025 and July 10, 2025; and (5) the fact that no late claim or petition for relief were filed.

The Court **GRANTS** the RJN as to Documents 2 and 4. (Evid. Code, § 452, subds. (c), (d); *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 369.) The Court

GRANTS RJN as to the existence of, but not the truth of the matter asserted, as to Documents 1 and 3 to determine the scope of Plaintiff's administrative exhaustion.

However, the Court **DENIES** RJN as to the fifth request that no late claim or petition for relief were filed because there is no declaration by an employee attesting to this fact. (*Gong, supra,* 226 Cal.App.4th at 376 [a court may take judicial notice that the records of the agency do not contain a claim **based on the declaration of an employee** familiar with agency records (emphasis added)].)

IV. Merits – General Demurrer –

a. Exhaustion of Administrative Remedies – 1st, 2nd, 3rd, 4th, 5th, 6th, 8th, and 9th Causes of Action ("COA")

District argues the foregoing COAs fail because the FAC fails to allege that a timely complaint was filed with the CCRD and that a right-to-sue letter has been obtained to satisfy the jurisdictional requirements for asserting COA under FEHA.

In order to sue for a violation of a FEHA claim, a plaintiff must first timely file a sufficient administrative complaint with the Department of Fair Employment and Housing ("DFEH"). (Gov. Code, §§ 12960[6], 12965, subd. (b).) The administrative complaint must identify the specific unlawful practices alleged, set forth the particulars thereof and contain other information as may be required by the department. (*Id.*, subd. (c).) A subsequent lawsuit is limited to claims that are "like or reasonably related" to those in the administrative charge or that could reasonably be expected to grow out of an administrative investigation of the charge. (*Okoli v. Lockheed Technical Operations Co.* (1995) 36 Cal.App.4th 1607, 1615.) Exhaustion of administrative remedies is "a jurisdictional prerequisite to resort to the court." (*Campbell v. Regents of Univ. of Cali.* (2005) 35 Cal.4th 311, 321.) Thus, failure to exhaust is a basis for demurrer.

Here, the FAC alleges that on May 21, 2026, she filed a Civil Rights Complaint with the Civil Rights Department, which was rejected by District on June 3, 2025 and July 10, 2025. (FAC ¶20.) The FAC alleges Plaintiff exhausted her administrative remedies by filing a timely administrative complaint with the CCRD, formerly known as the DFEH, and received a right to sue letter. (*Id.* ¶19.) Because District's RJN was denied as to the fact that no late claim or petition for relief was filed, the FAC is sufficiently pled.

<u>Statute of Limitations.</u> District further argues the FAC improperly relies on stale allegations dating back to 2017 and 2022, which are time barred under Government Code section 12960(3).

A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) It is not enough that the

[6] When a charge is filed with the California Civil Rights Department, and the charge is within the subject matter jurisdiction of the federal Equal Employment Opportunity Commission ("EEOC"), the charge will be deemed automatically cross-filed with the EEOC. (29 C.F.R. § 1601.13, subd. (a)(4).)

complaint might be barred. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

Assembly Bill 9 extended the statute of limitations for filing a claim under FEHA from one year to three years, effective January 1, 2020. (*See* Gov. Code, § 12960, subd. (e).) However, contrary to District's argument, the statute of limitations does not render earlier factual allegations improper or irrelevant. As Plaintiff points out, the continuing violation doctrine allows acts outside the limitations period to be considered where they are sufficiently related to timely conduct. (See *Richards v. CH2M Hill, Inc.* (2001) 26 Cal.4th 798, 802.) Allegations dating back to 2017 and 2022 are therefore relevant to establish an ongoing pattern of discrimination and retaliation.

The Court **OVERRULES** the demurrer.

b. 7th (Whistleblower Retaliation) and 10th (IIED) COA

District argues Plaintiff failed to comply with the Government Claims Act to maintain the 7th and 10th causes of action. District again argues Plaintiff seeks to bolster her claim by improperly relying on allegations dating back to 2017 through 2024, which are time barred. For the same reason the stale argument fails under the FEHA claims, it fails here as well given the continuing violation doctrine.

The failure to present a timely claim and allege facts demonstrating or excusing compliance with the claim and allege facts demonstrating or excusing compliance with the claim presentation requirement subjects a complaint to a general demurrer. (*State v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1239.) Thus, presentation of the claim is not merely a procedural requirement; it is a condition precedent to a claim against the entity. (*Id.* at 1240.)

Any claim against a public entity for personal injury must be presented to the governmental entity within six months of accrual of the cause of action. (Gov. Code, § 911.2, subd. (a).)

The public entity must act on the claim "within 45 days after the claim has been present." (Gov. code, § 912.4, subd. (a).) Under Government Code section 911.3, subdivision (a), when a claim is presented late without an application to present a late claim having been made, the public entity "may, at any time within 45 days after the claim is presented, give written notice to the person presenting the claim that the claim was not filed timely and that it is being returned without further action."

If a claim is not filed within the six-month claim presentation period, the claimant may apply to the public entity within a reasonable time, not to exceed one year after accrual, for leave to present a late claim. (Gov. Code, § 911.4, subds. (a), (b).) Absent circumstances that would toll the late claim application period, a public entity is generally "powerless to grant relief" if the late claim application is made after the one-year period has expired. (*Hom v. Chico Unified School District* (1967) 254 Cal.App.2d 335, 339 [14 months after accrual].)

If the public entity denies the application for leave to present a late claim, the claimant may file a petition for a court order relieving the claimant from the need to comply with Section 945.5. (Gov. Code, § 946.6.) The relief sought by the petition is not permission to present a late claim, but an order relieving the claimant from presenting a claim at all. (*Ard v. County of Contra Costa* (2001) 93 Cal.App.4th 339, 343.) The petition for an order for relief from Section 945.5 must be filed within six months after the late claim application is denied by the public entity or is deemed denied under Section 911.6 by operation of law. (Gov. Code, § 946.6, subd. (b); *City of San Diego v. Superior Court (Dines)* (2015) 244 Cal.App.4th 1, 9.)

Before a court can relieve a potential plaintiff from the Government Claims Act requirements, the plaintiff must first establish by a preponderance of evidence one of the grounds for relief set out in Government Code section 946.6, subdivision (c). (*Santee v. Santa Clara County Office of Educ.* (1990) 220 Cal.App.3d 702, 708.)

Government Code section 946.6, subdivision (c), provides:

> The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable:
>
> (1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.
>
> (2) The person who sustained the alleged injury, damage or loss was a minor during all of the time specified in Section 911.2 for the presentation of the claim.
>
> (3) The person who sustained the alleged injury, damage or loss was physically or mentally incapacitated during all of the time specified in Section 911.2 for the presentation of the claim and by reason of that disability failed to present a claim during that time.
>
> (4) The person who sustained the alleged injury, damage or loss died before the expiration of the time specified in Section 911.2 for the presentation of the claim.

Accrual of a cause of action for purposes of the claims statute is the date of accrual pertaining to the statute of limitations applicable to a dispute between private litigants. (Gov. Code, § 901.) "The primary function of Tort Claims Act is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate avoid litigation by settling claims. [Citations.]" (*Dilts v. Cantua Elementary School Dist.* (1987) 189 Cal.App.3d 27, 32.)

Here, the FAC alleges "Plaintiff timely served Defendant BUSD a tort claim letter on May 21, 2025, pursuant to Government Code section 910 et seq. Defendant thereafter rejected Plaintiff's claim by letters dated June 3, 2025, and July 10, 2025 and this action is filed within the applicable time period following rejection of said claim." (FAC ¶20.) Based on the continuing violation doctrine, taking all allegations as true for purposes of demurrer, the demurrer has not clearly and affirmatively shown that the claim is barred. (*Lockley, supra,* 91 Cal.App.4th at 881.) The Court **OVERRULES** the demurrer.

c. 10th Cause of Action – IIED

District contends the FAC fails to allege that District's conduct was sufficiently outrageous. Moreover, it fails to allege facts that a person in a supervisory position had prior knowledge of a person's propensity to do the bad act.

The elements of a cause of action for IIED are: (1) extreme and outrageous conduct by defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's severe emotional suffering; and (4) actual and proximate causation of the emotional distress. (*Huges v. Pair* (2009) 46 Cal.4th 1035, 1050.) "It is not enough that the conduct be intentional and outrageous. It must be conduct directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware." (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

Outrageous conduct is that which is so extreme it goes beyond all possible bounds of decency and is regarded as atrocious and utterly intolerable. (*Hughes, supra,* 46 Cal.4th 1035, 1050-1051; *Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496; *Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) "Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress." (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.)

The California Supreme Court has set a very high bar for this cause of action, and has also held, "severe emotional distress" means "emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it." (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal.4th 965, 1004.)

Employment actions can involve outrageous conduct. (*Murray v. Oceanside Unified Sch. Dist.* (2000) 79 Cal.App.4th 1338, 1362-1363; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 618.)

In the present case, through paragraphs of incorporation, the FAC alleges this claim is "asserted against Defendant's employees, including Reveles, Bray, Ordonez, Hernandez, Castilllo, Kakish, Harbauer, and Bernauer, in their personal capacities pursuant to California Government Code section 820, and vicariously against entity

Defendant [] under Government Code section 815.2, for the acts and omissions of its employees committed within the course and scope of employment." (FAC ¶¶81-82.)

Reveles, the purchasing supervisor, subjected Plaintiff to repeated and unwelcome sexual conduct, including touching her back, fondling her bra strap, pressing his groin toward her face while she was seated at her desk, blocking doorways to force her to brush past him, and adjusting his genital area in her presence. (FAC ¶14.) Ordonez (Director of Fiscal Services), Hernandez (Plaintiff's supervisor), and Castillo (HR Director) repeatedly followed Plaintiff throughout the district office and positioned themselves outside office doors to stare through glass panels whenever Plaintiff attempted to seek assistance. (*Ibid.*) In a meeting, Ordonez slammed the door, slammed her hands on the desk, pushed her keyboard toward the monitor and displayed hostile body language. (*Ibid.*) In a different meeting, "Castillo slammed her hands on the conference table, leaned forward with her face and neck turning bright red, raised her voice, and used aggressive gestures, rolling her eyes and smirking. Bernauer physically flinched, Ordonez displayed shock, and the Chief Business Official immediately looked at Castillo, reflecting the intensity of the outburst" such that Plaintiff feared for her safety. (*Ibid.*) Due to work related stress, Plaintiff was diagnosed with PTSD and her mental health diagnoses were clinically resistant to treatment. (*Ibid.*)

The FAC alleges Defendants' discriminatory, harassing, and retaliatory actions caused Plaintiff extreme emotional distress, which she continues to suffer, humiliation, and mental and physical pain and anguish. (*Id.* at 83-85.)

Indeed, liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (*Light v. Department of Park & Recreation* (2017) 14 Cal.App.5th 75, 101, quoting *Huges v. Pair* (2009) 46 Cal.4th 1035, 1051; see also *Yurick v. Sup. Ct.* (1989) 209 Cal.App.3d 1116, 1128 ["there can be no recovery for mere profanity, obscenity, or abuse, without circumstances of aggravation, or for insults, indignities or threats which are considered to amount to nothing more than mere annoyances. The plaintiff cannot recover merely because of hurt feelings"] [internal quotation omitted].) The foregoing conduct does rise to the level of "extreme and outrageous" conduct necessary to withstand demurrer as it cannot be said that the actions amounted to mere annoyances or trivialities.

Accordingly, the allegations contained in the FAC are sufficient to withstand demurrer. Thus, the Court **OVERRULES** the demurrer.

V. Merits – Special Demurrer

A special demurrer for uncertainty lies only where the complaint is so poorly drafted that the defendant cannot reasonably respond. That is, the defendant cannot reasonably determine what issues must be admitted or denied or what claims are asserted against him. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) Where it is alleged that a pleading is uncertain, the movant must specify how or why the pleading is uncertain, and where such uncertainty appears in the face of the pleading under attack. (*Fenton v. Groveland Comm. Services Dist.* (1982) 135 Cal.App.3d 797, 809 [overruled on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300, 328].) District's special demurrer disputes facts stated in the FAC, and as such, it cannot be "so ambiguous or unintelligible [she] cannot reasonably respond." The Court **OVERRULES** the special demurrer for uncertainty.

5.

CASE #	**CASE NAME**	**HEARING NAME**
CVRI2601892	YAMMOUT vs SHULTZ	DEMURRER ON COMPLAINT

Tentative Ruling: Continue to 8/19/26 to be heard concurrently with the motion for nunc pro tunc.